

Owner Decisions Required Before Signing

The package is usable for interviewing and onboarding design now. The employment agreement cannot be signed until these items are finalized.

Recommended decisions

1. **Worker classification:** Employee. Do not label this role an independent contractor without Ontario legal advice.
2. **Term:** Three-month fixed-term employment beginning on the date the last party signs the agreement; not independent contracting; no automatic renewal.
3. **Base salary:** \$60,000 CAD annually, paid through payroll.
4. **Client target definition:** Net-New Paid-Active Client only.
5. **Recruit target definition:** Active Certified Sales Associate only.
6. **Promotion:** Eligibility for Director of Sales after 30 additional team-production paid-active clients during Days 91–180 under a signed renewal; not automatic.
7. **Personal commission from Day 1:** Rod earns a one-time 10% commission on net collected setup fees plus a separate 10% commission on net collected monthly recurring service revenue, beginning with his first qualifying personally sourced and closed client.
8. **Commission basis:** Setup-fee commission applies only to setup-fee cash received, cleared, and retained by 1APP. Recurring commission applies only to net collected monthly recurring service revenue. Both exclude taxes, refunds, chargebacks, credits, usage pass-through, reimbursed expenses, and third-party costs.
9. **Trial treatment:** A cleared approved setup-fee payment can generate the one-time personal setup-fee commission before trial conversion, but it does not make the client paid-active or count toward Rod's production target. Personal recurring commission and team override begin only after the 14-day trial converts and the recurring payment clears.
10. **Employment-only commission eligibility:** Setup-fee commission, personal recurring commission, and direct-team override are earned only on qualifying revenue received during Rod's Commission Eligibility Period. No commission vests for lifetime or creates a right to future post-employment subscription commission. Amounts already earned remain payable, subject to Ontario law.
11. **Direct-team override:** Rod earns 5% of net collected monthly recurring service revenue from qualifying clients personally sourced and closed by eligible sales associates he directly recruited. Setup fees are excluded from the override. One level only; no stacking with Rod's personal recurring 10%. The override is employment-dependent and does not become lifetime.
12. **First 90-day client target:** Rod's team must produce 20 qualifying paid-active clients through any combination of Rod's personal sales and qualifying sales by eligible associates whom Rod directly recruited and manages. Each client counts once. Owner and outside-team sales do not count without a prior written amendment.
13. **Days 91–180 promotion target:** If adopted in a signed renewal, Rod's team must produce 30 additional qualifying paid-active clients through Rod's personal sales and/or qualifying direct-team sales. Hitting the target creates eligibility only, not an automatic promotion.
14. **Commission triggers:** The personal setup-fee commission is earned only after the approved setup-fee payment clears during the Commission Eligibility Period and attribution, quote, handoff, and conduct requirements are satisfied. Personal recurring commission and team override are earned only after the 14-day

trial is complete, paid continuation is authorized, and the applicable recurring client payment clears during that period.

15. **Pay dates:** Rod's first base-salary payment is due October 1, 2026 and is prorated from the Effective Date through September 30 if needed. After that, base salary, earned personal commission, and earned team override are paid on the 1st and 15th, subject to reconciliation cutoff and lawful payroll timing.
16. **Reporting:** Tony DeCarlo owns technical, implementation, setup, security, access, fulfillment, and technical escalation. Justin Roffey owns sales, business development, recruiting, pipeline, commercial coaching, and business escalation.
17. **Day-45 target-fit review:** Tony, Justin, and Rod review actual quote-acceptance and 14-day trial-to-paid counts and rates, pipeline coverage, sales capacity, fulfillment capacity, and client quality. The 20-client target remains in force unless 1APP and Rod sign a written amendment.

Tony and Justin must confirm

- Rod Norville's legal address and confirmation that "Rod Norville" is his full legal name.
- Insert the exact Fixed-Term End Date after both parties sign; it must be three calendar months after the Effective Date created by the last signature.
- Primary work location and remote/in-office expectations.
- Standard work schedule and travel expectations.
- Confirm that all future setup-fee, personal recurring, and direct-team override eligibility ends when Rod's Commission Eligibility Period ends, subject to Ontario law, while amounts already earned remain payable.
- Confirm the minimum five-business-day reconciliation rule and next-business-day handling when the 1st or 15th is not a payroll business day.
- Whether benefits or allowances are offered.
- Approved reimbursable expenses and approval limits.
- Equipment supplied by 1APP. Recommended: issue the employee Sales Manager a company-managed computer; require approved devices for associates unless 1APP supplies them.
- Device-management, multi-factor-authentication, password-manager, account-removal, and remote-work security standards.
- Confidential information and existing intellectual property schedules.
- Promotion title and compensation range.
- Retention threshold and exceptions.

Lawyer review required

Ask Ontario employment counsel to review:

- Employee classification.
- Fixed-term expiry, renewal, and early-termination wording.
- Termination and notice clause.
- Setup-fee commission earning, installment, refund/chargeback, calculation, and termination treatment.
- Commission Eligibility Period, calculation, reporting, payment, set-off, statutory/common-law notice, and post-termination treatment.
- Vacation pay and public-holiday treatment on commissions.
- Hours of work and whether the position truly qualifies for any managerial overtime exemption.
- Non-solicitation, confidentiality, intellectual property, and enforceability.
- Human-rights-compliant performance management.